

23STCV19636 23STCV19636

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-14

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Plaintiffs

allege that Defendant care custodian exercised undue influence over her dependent charge to change the beneficiary designation of an annuity and accounts.

Defendant

filed a Cross-Complaint alleging that Plaintiff/Cross-Defendant is misappropriating funds from the Clarissa Mantle Trust as to which Defendant/Cross-Complainant is the beneficiary.

The

parties settled the case. Plaintiff Cynthia

Mantle moves pursuant to Code Civ. Proc. § 664.6 to enforce settlement, for entry of judgment and for attorney's fees.

TENTATIVE RULING

The

motion to enforce settlement and for entry of judgment is GRANTED in the principal amount of \$250,000 plus \$3,065 in attorney's fees. Per Plaintiff's request the Court will retain jurisdiction until all terms of the Settlement Agreement have been fully performed.

ANALYSIS

Motion To Enforce Settlement

Plaintiff

Cynthia Mantle moves pursuant to Code Civ. Proc. § 664.6 to enforce settlement,

for entry of judgment and for attorney's fees. The ground for this motion is that

the Settlement Agreement between the

Parties required Defendant to, among other things, transfer to Plaintiff the sum of \$250,000 by January 30, 2026. Defendant has failed to perform under the Settlement Agreement and has not transferred any portion of the \$250,000 to Plaintiff to date. Through counsel, Plaintiff has made repeated unsuccessful efforts to obtain Defendant's compliance and performance under the Settlement Agreement.

Plaintiff also requests an order requiring Defendant to pay attorney's fees of \$8,948.50 and costs in the amount of \$60.00 which Plaintiff has been forced to incur in bringing this motion.

Civ.

Proc. Code §664.6(a) provides:

(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc. § 664.6(a).)

A

copy of the written Settlement Agreement between the parties is attached as Exhibit 1 to the Declaration of Nicole H. Silverstein. The portion which Plaintiff seeks to enforce reads as follows:

3.3. Defendant shall pay the entire sum of \$250,000 to Plaintiff, which may be paid in two payments of \$125,000, by January 30, 2026.

3.4. Within ten days of her receipt of the entire sum of \$250,000 in two different payments of \$125,000 from Defendant, provided that said sum is received in its entirety by January 30, 2026, Plaintiff shall dismiss her pending Verified Complaint in the Civil Action

with prejudice, with the Court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6.

. . .

8. Enforceability of Agreement.

This Agreement shall be enforceable as between all of the Parties, and the Court shall retain jurisdiction to enforce the terms of this Agreement pursuant to California Code of Civil Procedure section 664.6. At the request of any Party to this Agreement, the Court may enter judgment pursuant to the terms set forth in this Agreement and may retain jurisdiction over the Parties to enforce this Agreement in full until its final performance. This Mutual Settlement Agreement may be enforced by way of a Motion to Enforce this Mutual Settlement Agreement upon material breach. The Parties further agree that, upon application by any Party, the Court may set aside the dismissal of any petition, complaint, or other operative pleading if necessary for the purpose of enforcing the terms of this Agreement and entering judgment pursuant to its terms. Finally, as this matter was settled during mediation, pursuant to California Evidence Code sections 1119-1123, the Parties specifically agree that: (1) this Agreement is admissible as evidence and subject to disclosure in enforcement proceedings; (2) all the material terms of the settlement are set forth herein; (3) this Agreement is enforceable under California Code of Civil Procedure section 664.6 and the court, upon motion of either Party, may enter judgment pursuant to the terms hereof; (4) no Party shall oppose a motion under California Code of Civil Procedure section 664.6 to enter judgment pursuant to the terms of this Agreement on the ground that this Agreement is confidential or otherwise privileged; and (5) all Parties specifically waive the mediation privilege and any other confidentiality privilege only as such applies to this Agreement for limited purpose of its enforcement in a court of law.

9. Remedies in the Event

of Breach. Upon a material breach of this Agreement by any Party, any nonbreaching Party harmed by such material breach shall, in her sole and absolute discretion, have the right to either: (1) Declare this Agreement void and rescinded, whereupon each Party shall promptly return all consideration received under this Agreement (including any releases given under this Agreement and any obligation to abandon legal claims under this agreement) and no further performance otherwise required by this Agreement shall be due from any Party; or (2) enforce this Agreement, including by any applicable claim for damages and/or equitable relief (including for specific performance, injunctive relief, etc.), whether such claim is brought by motion pursuant to California Code of Civil Procedure section 664.6, in a new action, or otherwise.

The

Settlement Agreement was electronically signed by both parties on October 28, 2025 and their respective counsel. "To date, Defendant has not paid any portion of the \$250,000 sum to Plaintiff." (Silverstein Decl., ¶ 10.) As such, Plaintiff is entitled to entry of judgment in the principal sum of \$250,000.

As for attorney's fees,

¶ 22 of the Settlement Agreement provides:

22. Dispute Resolution.

In the event of any motion, dispute, claim, or controversy between or among the Parties arising out of or relating in any way (whether directly or indirectly) to this Agreement or any of the documents executed pursuant to this Agreement, whether in contract, tort, equity, or otherwise, and whether relating to the meaning, interpretation, effect, validity, performance, or enforcement of this Agreement or any of the unsuccessful Party in such Dispute , and expenses (notwithstanding the provisions of California Code of Civil Procedure section 1033.5(b)) of the prevailing Party, in addition to any other relief to which the prevailing Party may be entitled, including any and all appeals or petitions therefrom. Any attorney fee award in favor of the prevailing Party shall not be computed in accordance with any court schedule but shall be such as to fully reimburse all , and expenses actually incurred in good faith, regardless of the size of the judgment, it being the intention of all Parties to fully compensate for all fees, costs, and expenses paid or incurred in good faith.

Plaintiff's

request for attorney's fees is GRANTED in the reduced amount of \$3,065, which is the reasonable amount of time three attorneys billing at rates of \$440, \$635 and \$915 should have spent on an unopposed motion to enforce settlement agreement, including attempts to obtain payment prior to the motion.

The

motion to enforce settlement and for entry of judgment is GRANTED in the principal amount of \$250,000 plus \$3,065 in attorney's fees. Per Plaintiff's request the Court will retain jurisdiction until all terms of the Settlement Agreement have been fully performed.